

25STCV36401 25STCV36401

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV36401 Hearing Date: July 22, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

LOS

FELIZ HEALTHCARE & WELLNESS CENTRE, LP,

Plaintiff,

vs.

DYNASTY

HOSPICE, INC.,

Defendant.

Case No.:

25STCV36401

Hearing

Date:

July 22,

2026

ORDER
GRANTING MOTION FOR ALTERNATIVE
SERVICE

I. BACKGROUND

Plaintiff

Los Feliz Healthcare & Wellness Centre, LP ("Los Feliz") and Defendant Dynasty Hospice, Inc. ("Dynasty") executed a contract for Los Feliz to provide skilled nursing services for Dynasty's hospice facility. Dynasty has allegedly failed to pay over \$35,000.00 to Los Feliz for services rendered. Los Felix sues Dynasty for four causes of action, including breach of contract.

On

April 3, 2026, Los Feliz filed the instant motion to permit service on Dynasty via the California Secretary of State. No party opposes.

II. LEGAL STANDARD

Corporations Code section 1702(a)[1]

provides: "If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State." Section 1702, subdivision (a).

III. DISCUSSION

Los Feliz requests the Court permit service on Dynasty via the California Secretary of State pursuant to section 1702, subdivision (a). The Court may permit alternative service on a corporation via the Secretary of State upon a showing that the agent for service cannot, with reasonable diligence, be found at the designated address. (Ibid.)

Dynasty is registered as an active California corporation; Evita I. Dimaano ("Dimaano") is Dynasty's registered agent, with an address of 1460 Victory Blvd., Suite 207A, Van Nuys, CA 91411 ("subject address"). (Mot., Clawson Decl. ¶¶ 2-5, Ex. 1-3.) Los Feliz's process server, Samanth Velazquez Barajas ("Barajas"), has attempted to serve Dimaano at the subject address four separate times, without success, on December 17, 23, 27, and 30, 2025. (Mot., Clawson Decl. ¶ 7, Ex. 4-5.) Barajas was unable to locate any "Suite 207A" at the subject address, even after seeking assistance from other tenants. (Ibid.) On each occasion, Barajas was unable to make contact with Dynasty or anyone with knowledge of Dynasty. (Ibid.)

Thereafter, counsel attempted to locate alternative addresses for Dynasty. (Mot., Clawson Decl. ¶ 8.) Counsel could not find any currently active website for Dynasty to find an address. (Mot., Clawson Decl. ¶ 9.) Dynasty's other registered addresses, with the California Department of Health Care Access and Information and the Centers for Medicare & Medicaid Services as National Provider, both also utilize the subject address. (Mot., Clawson Decl. ¶¶ 10-11.)

On March 6, 2026, counsel attempted to serve Dynasty pursuant to Code of Civil Procedure section 415.30, subdivision (a), by mailing a copy of the summons with a copy of the notice and acknowledgement. (Mot., Clawson Decl. ¶ 12.) The notice and acknowledgement was not returned, nor was a return receipt received. (Ibid.)

Los Feliz also attempted to serve Dimaano at addresses registered to other business with Dimaano as the registered agent of process. (Mot., Clawson Decl. ¶¶ 13 – 16.) Los Feliz's process server, Ed Warnecke ("Warnecke"), attempted service at the address five times, without success. (Mot., Clawson Decl. ¶ 17, Ex. 10-11.) Los Feliz is unable to identify any alternative means to serve Dimaano or Dynasty. (Mot., Clawson Decl. ¶ 18.)

The Court finds Los Feliz has made reasonably diligent attempts to serve Dynasty, both via agent at the designated address, and via alternative means. Therefore, the Court grants the motion.

V. CONCLUSION

Plaintiff

Los Feliz Healthcare & Wellness Centre, LP's motion for order permitting service on Dynasty via the California Secretary of State is GRANTED.

Los Feliz is ordered to give notice.

DATED:

July 22, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative

ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Corporations Code